

CODE OF CONDUCT

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Purpose

The ICBS Code of Conduct is intended to assist all staff, suppliers and associates to uphold the values of the ICBS and make ethical decisions and practices in their professional and private lives, both within and outside working hours and places, and to better understand the obligations placed upon their conduct. This Code of Conduct refers to any misuse of power and exploitation in the relationships among staff and suppliers and between them and those they serve. It offers guidance to promote safety, to ensure respect for the people with whom the ICBS transacts business and gets in contact, and to protect staff and the effectiveness, reputation, and integrity of ICBS work. As a policy document, suppliers need to understand and comply with the behavior that is expected from them as described by this Code of Conduct.

Scope of application

This Code of Conduct recognizes that all ICBS staff, suppliers and associates are people of high integrity whose actions and behaviors reflect the core values that underlie this Code of Conduct. More so, this code of conduct is intended to promote ethical decisions in their professional lives and at times in their private lives. Therefore it shall at all times apply to all those associated with ICBS including and not limited to all staff, contractors, sub-grantees, and associates during their service with and for the ICBS under an agreement of employment or service delivery at all times, To anyone working for the ICBS or on behalf of the ICBS on another basis, such as board membership, consultancy contract, a secondment agreement with another employer, temporary staff, trainees, interns, incentives workers, and volunteers.

General principles

ICBS Code of Conduct is a deeper representation of its core values that all staff and associates are expected to always identify with.

All staff and suppliers have a responsibility in promoting these core values as well as applying the following non-negotiables clauses that apply to all staff, suppliers and associates to ICBS.

- **Transparency:** Staff and suppliers should be as transparent as possible in all the decisions and actions that they take. They should give reasons for their decisions and should not restrict information unless this is clearly required by ICBS or by the law.

- **Objectivity:** Staff and suppliers should ensure that all decisions they take during their work, on behalf of ICBS, including making appointments, awarding contracts, or recommending individuals for rewards or benefits, must be based solely on merit.
- **Selflessness:** Staff and suppliers should not take decisions, which will result in any financial or other benefit to themselves, their family, or their friends. Decisions should be based solely on the best interests the organization they are serving.
- **Integrity:** Staff and suppliers should not place themselves under any financial or other obligation to an individual or an organization, which might influence them in their work in ICBS.
- **Treat people equally:** Staff and suppliers are expected to apply the principle of equality in their approach to any person, regardless of nationality, gender, race, ethnicity, religion, belief, financial and/or social position in the society.
- **Protect vulnerable people:** As vulnerable are most likely exposed to different abuses, each staff and supplier of ICBS should protect them from harassment, exploitation, trafficking, intimidation, sexual and emotional and physical abuse.
- **Accountability:** Staff and suppliers must accept accountability for their decisions and actions and be accountable to ICBS.
- **Honesty:** Staff and suppliers have a duty to declare any private interests, which might affect their work with ICBS.
- **Leadership:** ICBS applies a leadership structure based on the principles of CBS and sociocracy, where power or authority are distributed among the team. Responsibilities and authority are distributed among team members. Transparency, trust and accountability are important values in our organization.

Harassment and professional work behavior

ICBS in all its operations is committed to ensuring a non-intimidating and safe working environment where human dignity is always respected. Attitudes, words, and actions are perceived in different ways and may impact people differently depending on context and the individual. Every person comes with her/his background and has the right to decide when a particular conduct is unacceptable.

ICBS identifies with the definition of “**Harassment**” as any unwelcomed conduct that makes a person feel offended, humiliated, and/or intimidated. Unwelcomed conduct implies that the recipient’s feelings and individual perception of a particular behavior are what matters. Harassment may for example be present in the form of spoken or written words, gestures, or actions.

Staff, suppliers and associates are expected to:

- ✓ Treat colleagues and associates with dignity and courteousness.

- ✓ Be sensitive to different customs and cultures, adjust their behavior as needed and comply with the ICBS values set above. Staff and suppliers should never discriminate against anyone — including fellow employees, customers, suppliers, service providers, partners, or any other person. Undertake duties as an ICBS team member conscientiously and in keeping with the organization's values and its mission.
- ✓ Uphold and promote the highest standards of ethical and professional conduct in carrying out assigned duties in the workplace and in my life outside the official work environment. Furthermore, I will endeavor to represent and further the values and mission of ICBS to the best of my ability.
- ✓ Avoid any public statement which may unnecessarily reflect poorly on the name and reputation of ICBS.
- ✓ Display at all times equal respect for all persons regardless of their race, gender, religion, color, national or ethnic origin, language, sexual orientation, age, socioeconomic status, political conviction, or any other distinguishing features.
- ✓ Never behave in a way which constitutes harassment, at any time or under any circumstances.

Sexual exploitation and abuse and harassment

ICBS upholds the protection of its program participants from abuse including sexual exploitation and sexual abuse (SEA) and as an institution considers the UN General Assembly resolution 57/306 of 15 April 2003 on Zero tolerance to sexual exploitation and abuse. The term herein the term “sexual exploitation” means any actual or attempted abuse of a position of vulnerability, differential power, or trust, for sexual purposes, including, but not limited to, profiting monetarily, socially or politically from the sexual exploitation of another. Similarly, the term “sexual abuse” means the actual or threatened physical touching, and/or intrusion of a sexual nature, whether by force or under unequal or coercive conditions. Sexual harassment is any unwelcome conduct of a sexual nature that can cause offense or humiliation to the victim. The SH includes, but not limited to, commentaries on the victim's body, suggestive objects, and pictures in the workplace, degrading words used to describe the victim. Sexual harassment also includes the threat that lack of sexual submission will adversely affect the victim's employment, wages, advancement, assigned duties or other conditions that affect the victim's “livelihood”.

Staff, suppliers and associates are expected to:

- ✓ Become aware of the SEA risks and possible measures to actively mitigate these risks in order to prevent SEA and seek to protect all stakeholders in all situations, including on duty and off duty.
- ✓ Respond and report all the witnessed or suspected cases of SEA.
- ✓ Refrain from engaging in any sexual activity with a child under the age of 18.
- ✓ Mistaken belief in the age of a child is not a defense.

- ✓ Refrain from any act that may place an individual at risk of abuse, including online and psychological abuse.
- ✓ Never to exchange money, employment, goods, or services for sex, including consensual sex and all forms of humiliating, degrading, or exploitative behavior. This includes the buying of or profiting from sexual services as well as the exchange of assistance that is due to right holders for sexual favors.
- ✓ Never abuse a position to withhold development or humanitarian assistance or give preferential treatment for sex.
- ✓ Engaging in sexual relationships with members of the crisis-affected population is unacceptable and results in immediate discontinuity of association with the organization.
- ✓ Relationship with another staff or supplier of ICBS, where one has direct supervisory function over the other, to prevent the perception of a conflict of interest or abuse of power.
- ✓ Sexual relationship between ICBS staff/suppliers and a beneficiary is prohibited as they have unequal power.
- ✓ All staff and suppliers are expected to participate in PSEA trainings and to be always aware of PSEA.
- ✓ Sexual exploitation, abuse or harassment complaints shall be dealt with in way that ensures safety of complainant.

Child safeguarding

ICBS is committed to the protection of rights of children in line with legal provisions including those accentuated in UN Convention on the rights of the child (UNCRC). All staff members, suppliers and associates are expected to understand through available institutional mechanism that child protection and safeguarding is a collective and individual responsibility. ICBS staff' and suppliers' behavior and actions must protect the best interests of children as enshrined in the UN Convention of the Rights of the Child and make the ICBS a child-safe organization.

Staff and associates are expected to:

- ✓ Maintain a professional role with children and proactively prevent any risk of a child being harmed because of meeting ICBS staff, suppliers, programs, or activities.
- ✓ Have a clear understanding of safe interactions with children and how to identify and respond to any unsafe, unacceptable, or unprofessional conduct towards children.
- ✓ Ensure that children are appropriately and respectfully portrayed in all media and communications.
- ✓ Not use language and/or behavior toward the child that threaten, harass, abuse sexually, emotionally a child.
- ✓ Not inviting a child in unsafe place without informing a direct supervisory and for unknown reasons and purposes.

- ✓ Never asking an assistance or favor or service from a child in return of assistance or protection.

Conflict of interest, coercion, corruption, and fraud

ICBS in all its operations promotes moral and ethical business practices, including transparent, accountable, and honest practices in financial transactions, donations, gifts, and people management. ICBS staff, suppliers and associates shall avoid conflicts of interest and activities which may affect ICBS' credibility and integrity. A conflict of interest is a set of circumstances that creates a risk that professional judgment or actions regarding a primary interest will be unduly influenced by a secondary interest. Through ethical business practices, staff promote an organizational culture based on ICBS's core values and ethical principles.

Staff and associates are expected to:

- ✓ Be transparent, accountable, and honest in all work-related financial transactions.
- ✓ Ensure that financial and other resources are used solely for the intended purpose.
- ✓ Conduct all business in accordance with national and international laws standards and ICBS policies.
- ✓ Proactively declare any known or potential conflicts of interest to the ICBS.
- ✓ Always strive for production and delivery of goods and services purchased under conditions that do not involve the abuse or exploitation of any persons and have the least negative impact on the environment.
- ✓ Avoid activities outside the formal work setting (e.g., additional time-consuming employment or volunteer work) that would create a conflict of interest with ICBS duties and responsibilities or detract in any way from their work assignments.
- ✓ Not create business relationships between ICBS and members of my own extended family or friends or any private businesses in which I have a financial interest that may lead to a conflict of interest. If a staff becomes aware of a potential conflict of interest, s/he must immediately discuss this matter with direct supervisor.
- ✓ Neither offer to nor accept from the people ICBS serves, from partners or contractors any favors, bribes, or other forms of personal enrichment under any circumstances. Small tokens of appreciation may be offered or received, but staff must inform the supervisor of any such gifts.
- ✓ Neither seek nor accept instructions from any other authority external to ICBS that could jeopardize the scope or implementation of ICBS' work.
- ✓ Never use the knowledge of ICBS in the personal gain.
- ✓ We place a great deal of trust and confidence in our employees. In return, we expect you to act ethically and honestly in everything you do. Any use of fraudulent or illegal tactics violates that trust and carries potentially severe consequences, including discipline, up to and including termination of the contract.



- ✓ ICBS will also cooperate with authorities to prosecute any act of fraud, dishonesty, or criminal conduct, in accordance with the applicable laws and regulations.

Privacy and disclosure

ICBS respects the confidentiality of the personal information of its employees, customers, suppliers, and service providers. It is our responsibility to keep this information confidential.

The employees and suppliers of ICBS should:

- ✓ Not provide any confidential or proprietary information to third parties without appropriate authorization and a valid confidentiality agreement. Any unauthorized disclosure of confidential information, whether unintentional or not, must be reported immediately.
- ✓ Be careful when using electronic means of storing and sending information.
- ✓ Protect confidential information, while discussing with others, and when working in an open environment.
- ✓ Not use any information belonging to ICBS for their own personal gain.
- ✓ Make sure that any organization information they report is accurate, complete, and timely. Be certain that any document you prepare, or sign is correct, complete, and truthful.

This policy and the other provisions of this Code of Conduct are not intended to prevent or dissuade employees or suppliers from engaging in communications or activities protected by state or federal law, such as discussing wages, benefits, or other terms and conditions of employment. This policy also does not prevent employees or suppliers from disclosing confidential information when required by law or legal process.

Safety

Safety is one of core values of ICBS and that includes providing a safe and secure work environment. Maintaining a safe working environment is of the utmost importance and is everyone's responsibility. Staff and suppliers of ICBS should:

- ✓ Familiarize themselves and comply with safety rules and directives.
- ✓ Not undertake work you are not qualified to perform.
- ✓ Report to the supervisor any unsafe condition at workplace to ensure prompt attention.

Breach of the staff code of conduct

- ✓ Breach of this Code of Conduct is a misconduct that may result in disciplinary action in accordance with the respective ICBS terms, conditions and regulations and other applicable legal provisions, including, if applicable, charges under criminal law or termination of activity or employment.
- ✓ All employees have the responsibility of reporting any breach of the Code of Conduct. ICBS prohibits retaliation against any individual who reports any breach or participates in any related investigation pursuant to the applicable procedures.
- ✓ ICBS is committed to protect anyone reporting a breach of this Code of Conduct in good faith and on reasonable grounds.
- ✓ ICBS endeavors to offer protective measures to individuals assessed to be at risk as a result of a reported breach of this Code of Conduct.
- ✓ Purposely reporting a complaint based on false accusations, which later proves to be malicious, is in itself a breach of this Code of Conduct.
- ✓ Failure to report through the appropriate channels any breach of the ICBS Code of Conduct is in itself a breach of this Code of Conduct.

The signatory below has read, understood, and agrees with the content of the ICBS Code of Conduct. The signatory also accepts the consequences which could be applied to him/her in case of any violation of any of the above provisions under this Code of Conduct.

Reporting of breach of this code of conduct

Reporting of breach of the Code of Conduct means the reporting by employees or suppliers of suspected misconduct, sexual abuse or harassment or exploitation, illegal acts, or failure to act within the ICBS interest.

Protecting the person who has a concern:

Your rights: ICBS is committed to not dismiss anyone or allow them to be victims on the basis that they have made an appropriate disclosure.

Harassment or victimization: ICBS recognizes that it is difficult to report a case of breaching a Code of Conduct. A staff should not fear to report a case if it is honest, reasonable, and true disclosure as it is in each staff' duty.

Support a staff disclosing a breach of Code of Conduct: The staff will get a full support of leadership of ICBS. A concern will be taken seriously and ICBS will do all the best to do effective investigation. All efforts will be made not to reveal a reporter's identity if s/he wishes. If there is a need to witness, all necessary efforts will be done to provide advice and support.

To whom and how to raise a concern

It depends on the suspected wrongdoer. Usually, a concern is addressed to a member of the General Circle and/or to a member of the Operation Circle. If the disclosure is about the team leader or a member of the General Circle, a concern can be addressed to the Mission Circle of ICBS. However, a staff and/or supplier is free to consult any other staff s/he feels trust for advice and guidance about how to deal with a concern. A concern can be raised by telephone, in person or in writing. A reporter/victim is requested to provide the nature of the concern, background, and history. However, a reporter may prefer to discuss a concern with whom to report to before making a written concern. The reporter/victim must be aware that ICBS remain open to verify the truth so that an innocent person may not be offended. Depending to the concern, the management of ICBS may opt to use external resource for a better investigation in the interest of the victim and the organization. Once a concern was done in writing, ICBS will accuse a reception and start investigation immediately. At any step, a reporter/victim will be informed about the progress.

Commitment

I understand and commit myself to the content of this Code of Conduct. I understand any proven instances of any breach of the abovementioned standards will be treated as gross misconduct and, as such, will result in appropriate disciplinary action being taken, up to and including termination of my agreement with ICBS and/or prosecution.

Name:

Signature:

Date: